

HOUSE No. 2329

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel J. Ryan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to support the equitable utilization of third party consultants in land use determinations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel J. Ryan</i>	<i>2nd Suffolk</i>	<i>1/17/2025</i>

HOUSE No. 2329

By Representative Ryan of Boston, a petition (accompanied by bill, House, No. 2329) of Daniel J. Ryan for legislation to support the equitable utilization of third party consultants in land use determinations. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2109 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to support the equitable utilization of third party consultants in land use determinations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 53G of chapter 44, as appearing in the 2014 Official Edition of the General Laws,
2 is hereby amended by inserting after the first sentence the following:-

3 Such rules shall require that the city or town establish and update as necessary a list of
4 approved outside consultants having the minimum qualifications in one or more fields in which
5 the local permitting boards or commission reasonably expect to require outside consultants in
6 reviewing applications. The list shall be certified by the city clerk or town clerk and shall contain
7 not less than three outside consultants in each field. The applicant shall have the right to select
8 the outside consultant(s) from the certified list and to request and receive a proposal from each
9 consultant prior to making such selection. An applicant or petitioner shall not be charged with
10 the travel costs of an outside consultant. Where a proposed project requires the review and

- 11 approval of more than one local board, commission, or official, the respective local boards,
- 12 commissions, and officials shall coordinate in their use of outside consultants in order to avoid
- 13 unnecessary duplication.